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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN
MINISTRY OF LAW AND JUSTICE

Islamabad, the 10th September, 2021

No. F. 2(1)/2021-Pub.— The following Ordinance promulgated on 9th September, 2021 by the President is hereby published for general information:—

ORDINANCE NO. XXI OF 2021

AN

ORDINANCE

to establish a centralized database with the mandate to collect information and formulation of policy related to essential food commodities

WHEREAS it is expedient to provide institutional and legislative support for provision of information from divisions, departments, institutions and autonomous bodies of the Federal as well as Provincial Governments and for formulation of policy regarding national food security, its coordination and harmonization at the federal level and also to ensure inter Provincial flow of essential food commodities to fix support or indicative price of essential food commodities to minimize market distortion to protect citizens of the Islamic Republic of Pakistan from food deficiency, price hike, malnutrition, mismanagement of food reserves and to provide sufficient nutrition and food resources, storage, export and import, release, management and formatters connected therewith or incidental thereto;

(601)

Price: Rs. 10.00

[1301(2021)/Ex. Gaz.].

AND WHEREAS, the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title, extent and commencement.**— (1) This Ordinance shall be called the Pakistan Food Security Flow and Information Ordinance, 2021.

(2) It extends to the whole of Pakistan

(3) It shall come into force at once.

2. **Definitions.**— In this Ordinance, unless the context otherwise requires,—

(a) “Central Dash Board” means the database, storage and management of country-wide information of Essential Food Commodities in such form and manner as prescribed, which is necessary to assist the NFSMC to formulate the National Food Security Policy;

(b) “concerned Division” means the Division to which the business of this Ordinance stands allocated under the Rules of Business, 1973;

(c) “essential food commodities” means the commodities listed in the Schedule to this Ordinance;

(d) “executive committee” means executive committee established under this Ordinance;

(e) “information” includes crop acreage, production, yield, pricing, procurement, storage capacity, inspections, import or export, movement of releases and any other information required by the Federal Government to achieve the objectives of this Ordinance;

(f) “National Food Security Management Committee or NFSMC” means the committee established under this Ordinance;

(g) “National Food Security Policy” means a comprehensive policy, formulated and issued by the NFSMC to achieve the objectives of this Ordinance, including without limitation, for coordination and harmonization at the federal level of pricing, movement and release management of Essential Food Commodities;

- (h) "prescribed" means prescribed by the rules made under this Ordinance;
- (i) "Provincial Dash Board" means the database, storage and management of provincial information of Essential Food Commodities in such form and manner as prescribed, which is necessary to assist the NFSMC to formulate the National Food Security Policy;
- (j) "regulations" means regulations made under this Ordinance;
- (k) "rules" means rules made under section 9 of this Ordinance; and
- (l) "Secretary" means the person appointed as secretary to the NFSMC by the Prime Minister.

3. **National Food Security Management Committee.**— (1) The Federal Government shall, by notification in the official Gazette, constitute the NFSMC consisting of Prime Minister, the Provincial Chief Ministers and Chief Secretaries and such other persons as the Prime Minister nominates from time to time.

(2) The Prime Minister shall be the chairman and the other persons specified in sub-section (1) shall be members of the NFSMC. The Prime Minister shall appoint one of the members as the Secretary.

(3) The NFSMC shall meet at least twice in a year. The Prime Minister may also call a meeting of the NFSMC at any time. The quorum for a meeting of the NFSMC shall be one-thirds of its total membership and decisions thereof shall be taken by a majority of the members present and voting:

Provided that the NFSMC may, if approved by the Prime Minister, also take decisions by circulation without holding a meeting.

(4) The NFSMC shall formulate and issue the National Food Security Policy, implementation whereof shall be done by the Executive Committee by notification in the official Gazette.

(5) The NFSMC shall ensure that necessary institutional arrangements are in place at the Federal, Provincial and District and local levels for prompt sharing of information relating to national food security and essential food commodities including the provision, maintenance and operation of the Central Dash Board and the Provincial Dash Board in the prescribed manner.

4. **Executive Committee.**— (1) The Federal Government may, by notification in the official Gazette, constitute the Executive Committee, consisting of a convener and such members representing the federal and provincial governments as the NFSMC may nominate.

(2) The Executive Committee shall meet twice in a month and shall ensure implementation of the National Food Security Policy. The Convener of the Executive Committee may also call special meetings thereof as and when required.

(3) Subject to the provisions of this Ordinance, the Executive Committee shall recommend to the NFSMC,

- (a) ways and means to collect information,
- (b) fix the minimum support or indicative or intervention prices,
- (c) manage procurement or releases or movement from the public sector of the essential food commodities.

5. **Provision of information.**— The Executive Committee may call for any pertinent information required by it for carrying out the purposes of this Ordinance from any person involved, directly or indirectly, in any activity related to the National Food Security Policy and essential food commodities or any matter incidental or consequential thereto. Any person called upon to provide such information shall do so within the period specified by the executive committee.

6. **Contravention.**— (1) If an officer of a province working under the direct or indirect control or authority of the Chief Secretary of the said Province, does not comply with the provisions of or directions given under this Ordinance, the Chief Secretary concerned shall either himself or direct relevant authority, as the case may be, to take action against the delinquent officer in accordance with law.

(2) In case no action is taken as per sub-section (1) or the provisions of this Ordinance are not complied with, the competent authority shall take action against the officials responsible in accordance with law.

7. **Offences.**— (1) Subject to section 6 any person who contravenes any provision of this Ordinance shall be guilty of an offence punishable by imprisonment not exceeding six months or with the prescribed fine or with both.

(2) The provisions of sub-section (1) shall be in addition to and not in derogation of section 6 of this Act or any other law for the time being in force.

(3) No court shall take cognizance of an offence under this Ordinance except on a complaint in writing by the executive committee or a person authorized by it.

8. **Power to amend the Schedule.**— The Federal Government may, after consulting the NFSMC and by notification in the official Gazette, amend the Schedule to this Ordinance from time to time.

9. **Powers to make rules.**— (1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Ordinance.

(2) Until the rules are notified, the Minister-in-Charge of the concerned Division shall determine how to initiate the process to acquire, store or retrieve information for the formulation of the National Food Security Policy.

10. **Ordinance to override other laws.**— The provisions of this Ordinance and the rules made there-under shall have effect notwithstanding anything to the contrary contained in any other law, rule or regulation for the time being in force and any such law shall, to the extent of any inconsistency, cease to have any effect on the commencement of this Ordinance and the NFSMC shall be exclusively empowered to determine matters relating to the National Food Security Policy.

11. **Removal of difficulties.**— If any difficulty arises in giving effect to any of the provisions of the Ordinance, the Prime Minister may make such order, not inconsistent with the provisions of this Ordinance, as may appear to him to be necessary or expedient for the purpose of removing such difficulty.

Schedule
(See Section 8)

S. No.	Name of Essential Food Item
1.	Wheat & Wheat Flour
2.	Rice
3.	Lentil
4.	Gram
5.	Moong
6.	Mash
7.	Onion
8.	Tomato
9.	Potato
10.	Sugar
11.	Cooking Oil
12.	Banana

13.	Beef Average with Quality with bone
14.	Chicken Broilor (Live)
15.	Mutton
16.	Garlic

Pakistan Bureau of Statistics (PBS)

DR. ARIF ALVI,
President.

RAJA NAEEM AKBAR,
Secretary.